

25STCP02304 25STCP02304

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Case Number: 25STCP02304 Hearing Date: July 16, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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WILLIAM MOLINARI,

Petitioner(s),

vs.

CITY OF

MONTEBELLO, et al.,

Respondent(s).

Case No.:

25STCP02304

Hearing Date:

July 16, 2026

[TENTATIVE] RULING

ON PETITION FOR WRIT OF MANDATE

Petitioner William Molinari ("Petitioner") petitions for a writ of mandate against respondents City of Montebello ("City"), Montebello City Council ("Council"), and Montebello Planning Commission ("Commission") (collectively, "Respondent"), directing it to set aside the decision to deny his application to build 15 single-family residences at 301 Jacmar Drive, Montebello, California ("Project") and compelling Respondent to approve the Project.

The petition for writ of mandate is granted.

I. Factual Background

The following facts are undisputed.

The Project site is a 63,745 square foot lot improved with a one-story single-family residence. (AR 212, 240.)

On January 22, 2024, Petitioner applied to demolish the existing improvement, subdivide the lot into 16 lots, and build a single-family residence on each of 15 of those lots. (AR 1528-33.) The same day, Respondent deemed the application complete. (AR 1528.)

There is no notice of inconsistency in the administrative record.^[1]

The Commission held hearings on the Project on June 4, 2024, June 18, 2024, and July 16, 2024. (AR 986-89, 1234-37, 1438-42.) For each hearing, staff issued staff reports recommending approval. (AR 990-1001, 1238-48, 1443-53.) At the end of the July 16, 2024 hearing, the Commission voted not to approve the Project. (AR 984-85.)

Petitioner appealed the Commission's decision to the Council. (AR 881-82.)

On March 26, 2025, the Council

held a public hearing. (AR 196-203.) City staff again recommended approving the Project. (AR 204-214.) The Council denied Petitioner's appeal, letting stand the Commission's disapproval of the Project. (AR 133-34.)

II.

Procedural History

On June 23, 2025, Petitioner filed his verified petition. Proofs of service filed June 26, 2025 indicate Petitioner served the summons and petition on Respondent by personal service on June 26, 2025.

On February 26, 2026, Petitioner filed his opening brief. On April 23, 2026, Respondent filed its opposition.[2] On May 19, 2026, Petitioner filed his reply.

On May 20, 2026, Petitioner lodged the certified administrative record with the Court.

On May 29, 2026, the Court continued the hearing on the petition (originally calendared for June 4, 2026) and directed the parties to submit limited supplemental briefing addressing a single issue not covered in the original filings, namely, whether *Richman v. Santa Monica Rent Control Board* (1992) ("Richman") governs the exhaustion analysis presented in this case. The Court ordered that the supplemental briefs address only that discrete question of law.

On June 18, 2026, Petitioner filed a supplemental brief. On July 7, 2026, Respondents likewise filed a supplemental brief.

III.

Standard of Review

1.

Administrative Mandamus

Code of Civil Procedure section

1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative

agencies. (*Topanga Ass'n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15 ["Topanga"]).) Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811). In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143; see Code Civ. Proc. § 1094.5(c).)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (*Steele v. Los Angeles County Civil Service Commission* (1958) 166 Cal.App.2d 129, 137.) "[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion." (*Alford v. Pierno* (1972) 27 Cal.App.3d 682, 691.)

Where the issue is whether a fair administrative hearing was conducted, a petitioner is entitled to an independent judicial determination of the issue. (*Sinaiko v. Superior Court* (2004) 122 Cal.App.4th 1133, 1141; *Pomona Valley Hospital Medical Center v. Superior Court* (1997) 55 Cal.App.4th 93, 101.) Therefore, the court must independently review the fairness of the administrative proceedings as a legal issue. (*Rosenblit v. Superior Court*, (1991) 231 Cal.App.3d 1434, 1438.)

2.

Housing Accountability Act

Actions to enforce the Housing

Accountability Act ("HAA") are brought in administrative mandate. (Gov. Code § 65589.5(m); *Honchariw v. County of Stanislaus* (2011) 200 Cal.App.4th 1066, 1072.)

Although a court would normally defer to an agency's interpretation of its own ordinances, "land use decisions under the HAA are different," and "it is inappropriate for [courts] to defer to the City's interpretation." (*California Renters Legal Advocacy & Education Fund v. City of San Mateo* (2021) 68 Cal.App.5th 820, 844.) Thus, courts must engage in a "more rigorous independent review . . . in order to prevent the City from circumventing what was intended to be a strict limitation on its authority." (*Ibid.*; *Ruegg & Ellsworth v. City of Berkeley* (2021) 63 Cal.App.5th 277, 299.)

HAA cases are governed by a “reasonable person” standard that favors project approval, under which a court must determine whether “substantial evidence . . . would allow a reasonable person to conclude that the housing development project” complies with applicable standards. (Gov. Code § 65589.5(f)(4).) Additionally, the local agency bears the burden of proof to demonstrate that its decision conformed to the HAA. (Gov. Code § 65589.6.) Finally, the HAA must “be interpreted and implemented in a manner to afford the fullest possible weight to the interest of, and the approval and provision of, housing.” (Gov. Code § 65589.5(a)(2)(L).)

IV.

Requests for Judicial Notice

Petitioner requests judicial notice of the following exhibits: (1) relevant portions of the City’s General Plan adopted April 10, 2024 (“2040 General Plan”) (Pet. RJN Ex. A); (2) Montebello Municipal Code (“MMC”) section 17.10.020 (Pet. RJN Ex. B); (3) the California Department of Housing and Community Development, Division of Housing Policy Development’s (“DHPD”) September 15, 2020 memorandum on “Housing Accountability Act: Technical Assistance Advisory” (Pet. RJN Ex. C); (4) MMC section 17.52.050 (Pet. RJN Ex. D); (5) MMC section 17.08.075 (Pet. RJN Ex. E); (6) MMC section 17.08.080 (Pet. RJN Ex. E); (7) relevant portions of DHPD’s June 10, 2020 memorandum on “Housing Element Site Inventory Guidebook Government Code Section 65583.2” (Pet. RJN Ex. G); and (8) DHPD’s Letter of Technical Assistance regarding the Project, dated February 24, 2026 (Pet. RJN Ex. H). These requests are granted. (Evid. Code §§ 452(b), (c).)

Respondent requests judicial

notice of the following exhibits: (1) the City’s General Plan adopted June 26, 1973 (“1973 General Plan”) (Resp. RJN Ex. 1); (2) the 2021-2029 Montebello Housing Element adopted June 22, 2022 (“Housing Element”) (Resp. RJN Ex. 2); (3) MMC section 17.10.020 (Resp. RJN Ex. 3); and (4) MMC section 17.41.040 (Resp. RJN Ex. 3). These requests are granted. (Evid. Code §§ 452(b).)

V.

Analysis

Petitioner argues Respondent denied the Project application without complying with the HAA.

1.

Respondent Has Not Met Its Burden to Show
Compliance with the HAA

Petitioner argues that Respondent was required, under the HAA, to approve the Project because (1) it did not give timely notice that the Project violated any objective zoning or land use regulations, including the applicable General Plan; and (2) did not make the required findings under the HAA to disapprove the Project.

As noted above, the standard of review for HAA is different from ordinary administrative mandamus. HAA cases are governed by a “reasonable person” standard that favors project approval, under which a court must determine whether “substantial evidence . . . would allow a reasonable person to conclude that the housing development project” complies with applicable standards. (Gov. Code § 65589.5(f)(4).) Critically, the local agency bears the burden of proof to demonstrate that its decision conformed to the HAA. (Gov. Code § 65589.6.)

Petitioner has established, and Respondent has not disputed, that the HAA applies to Respondent’s consideration of the Project application. The record shows the Project qualifies as a housing development project because it consists of only residential units. (See, e.g., AR 262; Gov. Code § 65589.5(h)(2)(A).)

In opposition, Respondent has neither established nor argued that its decision complied with the HAA. (See Opp. at 8-12.) Indeed, nothing in the record shows that Respondent provided the appropriate notice under the HAA, which mandates written notice of any claimed inconsistency with zoning or land use regulations within 30 days, failing which the application is automatically deemed consistent. (Gov. Code § 65589.5(j)(2).) The record further indicates that both the Commission and the Council disapproved the Project without making any written factual findings of a specific, adverse impact upon public health or safety as the statute requires. (Gov. Code § 65589.5(j)(1); AR 132-34, 953-56.)

Respondent has therefore not met its burden to show that its disapproval of the Project complied with the HAA.

2.

Respondent's Defenses

Respondent raises defenses to

Petitioner's HAA claim: (1) Petitioner failed to exhaust its administrative remedies; (2) Respondent never evaluated the Project application under the relevant General Plan; and (3) the Project application does not specify whether the included road will be private or public. [3]

a.

Petitioner Did Not Fail to Exhaust His
Administrative Remedies

Respondent argues that Petitioner

failed to exhaust administrative remedies because he did not invoke the HAA before either the Planning Commission or the City Council. In substance, Respondent argues an issue exhaustion doctrine, asserting that Petitioner needed to present the HAA-specific objections (the 30-day notice requirement of Government Code section 65589.5(j)(2) and the mandatory findings requirement of section 65589.5(j)(1)) at the hearings before seeking judicial review. (Opp. at 8-9.)

The Court agrees that Petitioner

did not cite the HAA during the Commission or Council proceedings. (See AR 911-983, 1132-1231, 423-617; Opp. at 8.) Petitioner does not dispute this. Instead, Petitioner argues he raised "the same issues that underlie the HAA," such as project consistency with applicable zoning and land use standards, and that this is sufficient to satisfy issue exhaustion. (Reply at 3.)

Petitioner relies on McPherson

v. City of Manhattan Beach (2000) 78 Cal.App.4th 1252 ("McPherson"), Save Our Residential Environment v. City of West Hollywood (1992) 9 Cal.App.4th 1745 ("SORE"), and Center for Biological Diversity v. County of San Bernardino (2010) 185 Cal.App.4th 866 ("CBD"), to support the premise that a litigant need not cite the precise statute later relied upon in litigation, so long as the substance of the factual or environmental concern was presented to the agency. However, each of these cases depended on a condition that is not present here: the specific factual issue later litigated was clearly before the agency in the underlying proceeding. In McPherson, the timeliness and expiration of the vesting map was raised "at every administrative proceeding," even if the petitioner only later put a statutory

label on it. (McPherson, supra, 78 Cal.App.4th at p. 1264.) In SORE, the objections explicitly addressed the environmental impacts of the proposed site, which directly “fairly apprised” the City of the issue later litigated. (SORE, supra, 9 Cal.App.4th at p. 1750.) In CBD, the central issue of the adequacy of water supply to support the contested project was “squarely before the County.” (CBD, supra, 185 Cal.App.4th at p. 890.)

By contrast, nothing in the administrative record here establishes that Petitioner or any other participant ever raised (1) the City’s statutory duty to issue a written notice of inconsistency within 30 days (Gov. Code § 65589.5(j)(2)(A)), or (2) the City’s duty to make written health and safety findings supported by a preponderance of evidence before denying a housing project (Gov. Code § 65589.5(j)(1)). (See AR 938-39, 952-56, 127-134.) Thus, Petitioner’s authorities only partially support him. While a statute need not be named, the underlying issue must be put before the agency. The Court finds that that did not occur here.

Neither are Respondent’s authorities directly on point. Respondent relies on strict CEQA exhaustion cases that do not assist the Court’s analysis. For example, *Coalition for Student Action v. City of Fullerton* (1984) 153 Cal.App.3d 1194, involved challengers who failed to raise factual environmental objections that the agency had jurisdiction to address. Similarly, *City of Walnut Creek v. County of Contra Costa* (1980) 101 Cal.App.3d 1012 (“Walnut Creek”) is distinguishable. There, petitioners sought to raise a new theory about the meaning of the county’s own ordinance, a matter directly within that agency’s jurisdiction to interpret, and one it could have addressed had it been presented at the administrative level. The concern in *Walnut Creek* was that the challengers had deprived the county of the opportunity to construe and apply its own law in the first instance. (Id. at pp. 1020-1022.) These cases reflect the concern that agencies first be given an opportunity to evaluate and resolve factual issues that are within their purview.

Here, Petitioner’s HAA theory does not require further factual development. Whether Respondent issued written notice under subdivision (j)(2) is answered by the administrative record, which contains no such notice. (See AR 1522-1527, 1528; Opp. at pp. 5-6.) Whether Respondent made the findings required by subdivision (j)(1) is likewise answered by the record, which contains no written findings at either the

Commission or Council stages. (See AR 953-56, 133-34.) These are not matters within the agency's discretion or fact-finding authority; they are matters of statutory compliance triggered automatically by the City's decision to disapprove a housing project.

This is the type of question addressed in *Richman*, supra, 7 Cal.App.4th 1457. As in this case, the petitioner in *Richman* raised a statutory argument, the applicability of the Petris Act, for the first time in a writ proceeding. (Id. at p. 1463.) The administrative agency argued the issue was unexhausted. (Ibid.) The appellate court rejected that position, holding that when the issue concerns the applicability or construction of a statute, and when the facts relevant to that statutory question are undisputed, issue exhaustion does not apply because the agency lacks jurisdiction to finally determine such legal questions. (Id. at pp. 1463-1464.) Pure questions of statutory construction "lie[] outside the agency's jurisdiction," and petitioners may raise them for the first time in court. (Ibid.)

The reasoning of *Richman* applies equally to this case. Respondent does not dispute the facts relevant to HAA applicability: that the Project is a "housing development project" under section 65589.5(h)(2); that Respondent issued no written notice under section 65589.5(j)(2); and that Respondent made no written findings under section 65589.5(j)(1). (See AR 262, 1528, 133-34, 953-56; Opp. at 8-12.)

The Court is not persuaded by Respondent's argument, advanced in its supplemental brief, that *Richman* does not apply because the City here "had authority to apply the HAA." (Respondent's Supp. Brief, pp. 2-3.) *Richman* did not turn on whether the agency had general authority to apply the statute at issue. It held that issue exhaustion does not bar a petitioner from raising, for the first time in mandamus proceedings, a statutory limitation on the agency's discretion when the question is purely one of statutory applicability and the facts relevant to that statutory question are undisputed. *Richman* explains that "the construction of a statute and its applicability is solely a question of law," the "ultimate resolution" of which "rests with the courts," and therefore "lies outside the agency's jurisdiction." (*Richman*, supra, 7 Cal.App.4th at pp. 1463-1464.)

Respondent's supplemental brief

does not engage with that reasoning. Whether the HAA constrained the City's discretion to deny the Project is not a matter the City had authority to determine for itself. Respondent does not have jurisdiction to determine whether its own decision complied with mandatory state law requirements governing notice and written findings. As in *Richman*, these compliance questions are committed to judicial review. Similarly, Respondent's characterization of the HAA issues as fact-intensive does not change that the statutory consequences of those undisputed facts present a pure question of law.

With the factual grounds undisputed, the legal question before the Court is whether the HAA applies and what consequences follow from Respondent's failure to satisfy its statutory duties. Respondent had no authority to interpret, modify, or excuse compliance with statutory notice and findings requirements. Because Petitioner's HAA claims turn on statutory duties that were not dependent on Petitioner raising them, and because the dispositive questions lie outside Respondent's adjudicatory jurisdiction, issue exhaustion does not bar judicial review. (*Richman*, *supra*, 7 Cal.App.4th at 1463-1464.) Accordingly, Respondent's first defense fails.[4]

b.

Respondent Cannot Rely on Its Own Failure to Review the Project Application under the Proper General Plan

Respondent contends that the applicable General Plan was the 1973 General Plan, but the Project application was reviewed under the 2040 General Plan. On this basis, Respondent argues, "[i]t would be most injudicious to grant the sweeping relief sought by Petitioner without the City's having had the opportunity to evaluate the proposed project under the legally correct standard." (Op. at 11.)

Respondent has presented no legal authority to explain why its own failure to evaluate the Project application under the correct General Plan either demonstrates or excuses HAA compliance. Moreover, as Petitioner argues in reply, Respondent had a duty to give written notice of any inconsistency with the applicable General Plan within 30 days. (Gov. Code § 65589.5(j)(2)(A)(i).) Whether Respondent (or its staff) was aware of which of its own General Plans applied, the record does not show Respondent issued any written notice of inconsistency whatsoever, timely or untimely.

Therefore, Respondent's General

Plan argument cannot form a basis for denying Petitioner's requested writ relief.

c.

Ambiguity Regarding the Road Does Not Bar Relief

Respondent argues the application

is ambiguous about whether the road on the property will be public or private, which has implications under Streets and Highways Code section 1805 and Fire Code section 503.2.[5]

In reply, Petitioner notes that

Respondent did not disapprove the project on these grounds, and that it does not alleviate Respondent's duties under the HAA.

The Court agrees with Petitioner

that this defense is unavailing.

Nothing in either of these

statutes has any bearing on whether the Project should be approved. Streets and Highways Code section 1805 permits the City to pass a resolution to allow for a street smaller than 40 feet wide. (Sts. & Hy. Code § 1805.) Fire Code section 503.2 allows for private access roads 20 or more feet wide. (24 Cal. Code Regs. § 503.2.) The proposed road, at 26 feet wide (AR 243), can therefore be compliant with the Streets and Highways Code if public or the Fire Code if private. Also, as Petitioner argues, neither of these provisions alleviate Respondent of its burdens under the HAA.

3.

Petitioner Has Not Met His Burden to Show

Respondent Acted in Bad Faith

Petitioner argues Respondent

denied his application in bad faith, arguing that the Commission and Council each denied his application based primarily on community opposition.

If a

court finds that an agency acted in bad faith in disapproving a project in

violation of the HAA, the appropriate remedy is an "order or judgment directing the local agency to approve the housing development project or emergency shelter." (Gov. Code § 65589.5(k)(1)(A)(ii).) "Bad faith," for the purposes of Government Code section 65589.5, "includes, but is not limited to, an action or inaction that is frivolous, pretextual, intended to cause unnecessary delay, or entirely without merit." (Gov. Code § 65589.5(l).)

Community opposition is not a basis for denial under the HAA. (See Gov. Code § 65589.5(j)(1).) The HAA allows for denial only if "the housing development project would have a specific, adverse impact upon the public health or safety unless the project is disapproved" where "a 'specific, adverse impact' means a significant, quantifiable, direct, and unavoidable impact, based on objective, identified written public health or safety standards, policies, or conditions as they existed on the date the application was deemed complete." (Gov. Code § 65589.5(j)(1)(A).) Further, there must be "no feasible method to satisfactorily mitigate or avoid the adverse impact" except denial. (Gov. Code § 65589.5(j)(1)(B).) This decision must be based on "written findings supported by a preponderance of the evidence on the record" showing the adverse impact. (Gov. Code § 65589.5(j)(1).)

Respondent's opposition does not address Petitioner's "bad faith" argument. However, having reviewed the record, the Court is not persuaded that Respondent acted in bad faith.

At the Commission hearing, to the extent Commission members expressed their thoughts before denying the Project application, it appears they denied based on public opposition. (AR 952-53, 956.) Commissioner Valdez gave preliminary comments, stating:

"They said this is the most effective outreach, right, door-to-door knocking. Now, we have a petition here with over 500 signatures. So, you mean to tell me that 500 people answered their door and had an opinion enough to sign this document, whether it's qualified or not because this outreach is not qualified, either. The ten people that they spoke to out of 112, so that is a huge concern.

. . .

And instead, we are being

presented a letter saying that if we do not grant this variance, it is potentially a breach in constitutional right to the applicant. That is my concern, Commissioners. I'll just be blunt. I do not appreciate feeling as though we're being bullied instead of working with the community, working with the staff, and working with the commission to grant this variance." (AR 938-39.)

Commissioner

Lomeli stated in final comments, "I believe that I am here to hear what our community wants. And based on what our community wants, it is very clear that this is not what they want." (AR 952.) Commission Chair Morales stated:

"And definitely we want to –

well, we do have a General Plan that the city is working with as well, right?

We have development happening all around the City of Montebello. And definitely we want each zone in our city to also continue to develop and grow in this development. But, of course, we have to take into consideration the voice of the city, of the residents and on how we can make this work and how we can, you know, work together as a community as well. Well, after hearing my colleagues as well and coming into the conclusion, yes, this is a conflict. But coming in to the conclusion, I would like to motion to deny the project." (AR 953.)

Commissioners

Valdez and Chair Morales voted to deny, Commissioners Lomeli and Cuevas abstained, and Commissioner Medina voted against denial. (AR 956.) The motion included no findings. (AR 956.)

The Council expressed their view

even less clearly. Councilmember Peralta offered no comments. (AR 130.)

Councilmember Alonzo commented that he has never used his garage for parking (AR 127), asked about nondiscretionary SB 9 lot division (AR 127-28), and asked if Petitioner had been providing the community inaccurate information (AR 128-29). Councilmember Romero asked about potential ADU conversions. (AR 129-30.) However, Mayor Melendez stated:

"There is opposition from our residents. So I do have my concerns about the potential – potential integrity of the project itself.

...

So there is definitely some concerns here I know some of the residents have spoken out on. So I do have some concerns as well, and some of the concerns that my colleagues have raised as well. So I do have some concerns about the integrity of the community in allowing a project like this.” (AR 132-33.)

Mayor Melendez proceeded to close the public hearing, and the Council unanimously voted to sustain the Commission's denial. (AR 133-34.) The motion included no findings. (AR 133.)

While neither the Commission's nor Council's decisions were supported by any findings, written or otherwise, the record at most reflects disagreement with the Project and deference to community sentiment. The Court finds no evidence of conduct that was frivolous, pretextual, or intentionally obstructionist. Petitioner has therefore not met his burden to show that Respondent acted in bad faith.

VI.

Conclusion

Respondent has not shown its decision was made in compliance with the HAA, and its defenses do not overcome this failing. Petitioner has not established, however, that Respondent disapproved the Project in bad faith. In accordance with Government Code section 65589.5(k)(1)(A), Respondent must approve the Project. The petition for administrative mandamus is therefore GRANTED.

Pursuant to Local Rule 3.231(n), Petitioner's counsel is ordered to prepare a proposed judgment and writ of mandate. The Court sets a Non-Appearance Case Review re Proposed Judgment/Writ for August 6, 2026.

Date: July 16, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line

“SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel’s contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The March 6, 2024 letter sent by Respondent to Petitioner’s contractor, which Respondent describes as “a 5 ½ page letter setting forth its concerns, comments and instructions,” is not a notice of inconsistency. (Opp. p. 5; AR 1522-1527.) On its face, the letter was issued pursuant to Government Code section 65943(a) and CEQA. And, while it notes outstanding items, the letter does not reference any specific plan, policy, ordinance or zoning requirement, or explain if or how the Project fails to comply with any specific plan or policy.

[2]

Petitioner has not objected to the untimely opposition. (See Garcia Decl., ¶¶ 3-5.) Further, there is no apparent prejudice to the Court doing so. The Court therefore exercises its discretion to consider it.

[3]

Respondent titles this argument, “The Relief Sought Should Not Be Granted on

this Record Because There Are Numerous Issues That Remain Undefined in Petitioner's Application," but its brief only discusses whether the road will be public or private. (Opp. at 11.)

[4]

Because the HAA applies and Petitioner is not barred from raising it, the Court applies the standard of review appropriate under the HAA. Consequently, the Court need not reach Petitioner's arguments under the ordinary Code of Civil Procedure section 1094.5 standard and *Topanga Ass'n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506.

[5]

The Fire Code is codified in Title 24 of the California Code of Regulations. Accordingly, this section is found at 24 Cal. Code Regs. § 503.2.